

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

Record class: ordinary release order following expiration of the rehearing period.

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. SYN-CA4-26-CV-4104 · Mandate release

Ordinary Mandate Release Order

Entered July 21, 2026.

The Court entered its published opinion and judgment on June 30, 2026. The time for filing a petition for panel or en banc rehearing expired without a petition. No party moved to stay the mandate, no higher court entered a stay, and no other filing presently prevents ordinary issuance.

The Clerk is directed to issue the mandate today under Federal Rule of Appellate Procedure 41. The mandate shall transmit a certified copy of the judgment and identify the published opinion that supplies its reasons. The district clerk shall docket receipt in Civil Action No. SYN-WDVA-25-CV-0733 and resume administration consistent with the appellate disposition.

The mixed result remains unchanged. The Court dismissed the evidence-sufficiency target for lack of interlocutory jurisdiction and affirmed the legal denial of qualified immunity on facts assumed for summary judgment. Issuance does not turn those assumptions into findings about the alleged strike or equipment reach. Those historical matters remain unresolved below.

Electronic notice of this release order shall issue to all registered counsel and the district clerk.

Scope and effect of release

This order concerns timing of the mandate, not a new merits determination. It denies no pending request because none exists. It neither shortens a live deadline nor adjudicates a hypothetical stay or rehearing path. The ordinary schedule matured from the June 30 judgment without an intervening event.

Upon issuance, appellate jurisdiction over matters embraced by the judgment returns in the usual manner to the district court. Judge Mercer may manage discovery, trial preparation, settlement, or other proceedings consistent with the opinion. The district court may not treat the appellate decision as resolving whose account of the obstructed interval is true.

The parties remain bound by district orders preserving native camera media, device data, and the limitations applicable to generated or reconstructed imagery. The appellate Clerk retains the docket and filed briefs under ordinary retention procedures. A later request concerning costs or record access must rest on an applicable rule and does not delay issuance absent a specific order.

Entered at the Court's direction on July 21, 2026. For the Court, by the Clerk.